

2. 9:00 AM CASE NUMBER: C25-00609

CASE NAME: VICKI RUDD VS. THERESA CALLEJAS

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 11. If the tentative ruling for Line 11 is not contested, this CMC is continued to September 11, 2026 at 8:30 a.m. in Department 16.

3. 9:00 AM CASE NUMBER: C25-01588

CASE NAME: MUKESH ADVANI VS. NIARE FEASTER

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 12. Since Line 12 is not opposed, this CMC is **continued** to trail the hearing on the Motion to Quash Service of Summons and Complaint to be heard on November 25, 2026 at 9:00 a.m. No appearance is required on June 17, 2026.

4. 9:00 AM CASE NUMBER: C25-01899

CASE NAME: BRENTWOOD SUNSET 2010, LLC VS. VIRGINIA PETERSON

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 14. If the tentative ruling for Line 11 is not contested, this CMC is continued to September 11, 2026 at 8:30 a.m. in Department 16.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MARK D. ROSENBERG, ESQ.

FILED BY: DALY, MICHELLE

TENTATIVE RULING:

Summary

Plaintiff Michelle Daly's ("Plaintiff") counsel, Law Offices of Mark D. Rosenberg ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Plaintiff on February 11, 2026 ("Motion"). The Motion is **granted** as set forth herein.

Background

In this case, Plaintiff alleges medical malpractice against Defendant Michael Vistnes, M.D. arising out of facial laser treatment. Withdrawing Counsel filed this Motion, supported by a declaration claiming that attorney-client relationship has suffered an "irreparable breakdown" in communication and trust. Withdrawing Counsel also represents that Plaintiff has retained "contract counsel," which presents a conflict. Withdrawing Counsel can no longer represent Plaintiff. Plaintiff refused to retain

other counsel and does not consent to withdrawal.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination “upon the consent of both client and attorney,” or “upon order of the court, upon the application of either client or attorney, after notice from one to the other.” Withdrawing Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. A trial date is not set. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, to retain “contract counsel” or to represent herself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The Court makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney’s Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on February 11, 2026. The withdrawal is effective immediately.
3. Withdrawing Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at her last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference for December 15, 2026, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that she is ordered to appear by zoom or in person.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court’s Order (MC-053) and the Change of Address form (MC-040).

6. 9:00 AM CASE NUMBER: C23-01684
CASE NAME: STAR JOSHUA VS. THE COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:

TENTATIVE RULING:

Summary: Entry of Judgment was filed on April 20, 2026. This hearing is **vacated**. No appearance is required on June 17, 2026.